THE GAZETTE OF INDIA : EXTRAORDINARY

THE SPECIFIC RELIEF ACT, 1963

ACT NO. 47 OF 1963 [13th December, 1963]

Section 1. Short title, extent and commencement.—

(1) This Act may be called the Specific Relief Act, 1963. (2) It extends to the whole of India. (3) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint. PART II SPECIFIC RELIEF CHAPTER II SPECIFIC PERFORMANCE OF CONTRACTS

Section 2. Definitions.—

In this Act, unless the context otherwise requires,— (a) "obligation" includes every duty enforceable by law; (b) "settlement" means any instrument (other than a will or codicil) whereby the destination or devolution of successive interests in movable or immovable property is disposed of or is agreed to be disposed of; (c) "trust" has the same meaning as in section 3 of the Indian Trusts Act, 1882, and includes an obligation in the nature of a trust within the meaning of Chapter IX of that Act.

Section 10. Specific performance in respect of contracts.—

The specific performance of a contract shall be enforced by the court subject to the provisions contained in sub-section (2) of section 11, section 14 and section 16.

Section 14. Contracts not specifically enforceable.—

The following contracts cannot be specifically enforced, namely:— (a) where a party to the contract has obtained substituted performance of contract in accordance with the provisions of section 20; (b) a contract, the performance of which involves the performance of a continuous duty which the court cannot supervise; (c) a contract which is so dependent on the personal qualifications of the parties that the court cannot enforce specific performance of its material terms; and (d) a contract which is in its nature determinable.

Section 14A. Power of court to engage experts.—

(1) Without prejudice to the generality of the provisions contained in the Code of Civil Procedure, 1908, in any suit under this Act, where the court considers it necessary to get expert opinion to assist it on any specific issue involved in the suit, the court may engage one or more experts and direct to report to it on such issue and may secure attendance of the expert for providing evidence, including production of documents on the issue.

Section 16. Personal bars to relief.—

Specific performance of a contract cannot be enforced in favour of a person— (a) who has obtained substituted performance of contract under

section 20; or (b) who has become incapable of performing, or violates any essential term of, the contract that on his part remains to be performed, or acts in fraud of the contract, or wilfully acts at variance with, or in subversion of, the relation intended to be established by the contract; or (c) who fails to prove that he has performed or has always been ready and willing to perform the essential terms of the contract which are to be performed by him, other than terms the performance of which has been prevented or waived by the defendant.

Section 20A. Special provisions for contract relating to infrastructure project.—

(1) No injunction shall be granted by court in a suit under this Act involving a contract relating to an infrastructure project specified in the Schedule, where granting injunction would cause impediment or delay in the progress or completion of such infrastructure project.

Section 20B. Special Courts.—

The State Government, in consultation with the Chief Justice of the High Court, shall designate, by notification published in the Official Gazette, one or more Civil Courts as Special Courts, within its local limits of area to exercise jurisdiction and to try a suit under this Act in respect of contracts relating to infrastructure projects.